

S.Gandhimathi vs M.Senthilkumar on 9 January, 2026

Author: P.Velmurugan

Bench: P.Velmurugan

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on : 29.10.2025

Pronounced on : 09.01.2026

CORAM:

THE HONOURABLE MR. JUSTICE P.VELMURUGAN

and

THE HONOURABLE MRS.JUSTICE L.VICTORIA GOWRI

C.M.A. (MD)No.521 of 2021

and

CMP(MD)No.4595 of 2021

S.Gandhimathi

... Appe

Vs.

M.Senthilkumar

... Resp

PRAYER: Civil Miscellaneous Appeal filed under Section 19 of the Family Court Act, 1984, to set aside the fair and decreetal order dated 04.01.2021 passed in H.M.O.P.No.211 of 2017 on the file of the learned Family Court, Tirunelveli.

For Appellant : Mr.C.Jeyaprakash

For Respondent : Mr.J.Vijayaraja

JUDGMENT

(Judgment of the Court was made by L.VICTORIA GOWRI, J.) This Civil Miscellaneous Appeal filed under Section 19 of the <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) Family Courts Act, 1984, to set aside the judgment and decree dated 04.01.2021 in H.M.O.P. No.211 of 2017 on the file of the learned Family Court, Tirunelveli, whereby the marriage between the appellant and the respondent solemnised on 08.09.2013 was dissolved under Section 13(1)(i-a) of the Hindu Marriage Act, 1955.

Prologue:

2. Matrimonial litigation often unfolds as a mosaic of grievances and counter-grievances, with each spouse projecting themselves as the aggrieved and the other as the wrongdoer. The Court, in such disputes, is not required to adjudicate every domestic disagreement or emotional hurt as if it were a tort, but to determine whether the statutory ground pleaded in this case, “cruelty” under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, has been made out on the touchstone of preponderance of probabilities.

3. The concept of “irretrievable breakdown of marriage” has been recognised by the Hon’ble Supreme Court in exercise of its extraordinary powers under Article 142 of the Constitution of India.

However, it is not, by itself, a statutory ground of divorce before this <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) Court exercising ordinary appellate jurisdiction. Nevertheless, long separation, repeated failure of reconciliation efforts and absence of any realistic prospect of reunion are relevant circumstances while assessing whether the continuance of a matrimonial bond has caused such mental agony and emotional distance as to amount to cruelty.

4. The present Civil Miscellaneous Appeal is at the instance of the wife, challenging the decree of divorce granted in favour of the husband by the learned Family Court, Tirunelveli, in H.M.O.P. No.211 of 2017, by judgment and decree dated 04.01.2021. The appellant contends that the decree is founded upon assumptions, that mere separation has been treated as a ground, and that the respondent/husband has failed to prove his case of cruelty.

5. The respondent/husband, on the other hand, supports the impugned judgment. He maintains that he has been subjected to mental cruelty by reason of the conduct of the appellant/wife, that there has been a long-standing separation, that several attempts at reconciliation have failed, and that there is, in reality, a complete breakdown of the marital relationship.

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6. In this backdrop, this Court is called upon to re-appreciate the pleadings and evidence, to examine whether the learned Family Court has correctly applied the principles governing “cruelty” and the scope of divorce under Section 13(1)(i-a), and to determine whether the impugned decree of divorce warrants interference in appeal.

Case of the husband / respondent: (petitioner before the learned Family Court):

7. The respondent/husband, Senthilkumar, instituted H.M.O.P. No.211 of 2017 on the file of the learned Family Court, Tirunelveli, seeking dissolution of marriage under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, on the ground of cruelty allegedly committed by the appellant/wife,

Gandhimathi.

8. According to the husband, the marriage between him and the appellant was solemnised on 08.09.2013 according to Hindu rites and customs at Sri Arumuga Nayanar Sannidhi, within the precincts of Sri Nellaiappar – Sri Gandhimathi Amman Temple, Tirunelveli Town, in the presence of elders, relatives and friends. The husband hails from Gudalur Village in Coimbatore District and the wife is from Tirunelveli <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) District.

9. The husband has studied up to D.E.C.E and was residing with his mother. The wife is an M.B.A. graduate. After the marriage, the spouses commenced their marital life in the husband's residence, where his mother, aged about 65 years and stated to be in poor health, was also residing.

10. Out of the wedlock, a female child, S. Lokitha, was born on 26.08.2014. The husband does not dispute that the child has all along been residing with the appellant/wife and is in her custody. The husband asserts that he took responsibility for all family expenses, including household expenditure, medical expenses of the wife and medical expenses of the minor child, and that he did his best to provide for the family with his earnings.

11. The crux of his grievance is that the wife frequently quarrelled with him from the early days of the marriage, insisting that he should leave his aged mother and relocate to Chennai for employment, and that she should live separately with him there. He alleges that she used <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) abusive and inappropriate language towards him, neglected her domestic responsibilities and failed to maintain the home properly.

12. The husband contends that he repeatedly explained that his mother was aged, ailing and dependent on him, and therefore he could not leave her alone and settle in Chennai. Yet, according to him, the wife continued to pick quarrels on trivial matters, particularly on the issue of leaving his mother and moving out. He asserts that even when he attempted to advise the wife to take care of the child and the household, she abused him in filthy language, asserted that she would live as she pleased, and challenged him to "do whatever you can". He further alleges that she told him that if he questioned her conduct, she would not live with him.

13. The husband further states that he informed the wife's parents about her behaviour and requested them to counsel her, but they failed to take any effective steps. He asserts that this indifference on the part of her parents emboldened the wife to persist in her quarrelsome and hostile conduct, causing humiliation to him and to his mother in the presence of relatives and neighbours. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm)

14. He alleges that the wife constantly expressed her unwillingness to live with him at Coimbatore, created disturbances when he was getting ready to go to work, suspected his movements, interrogated him and behaved in a dominating manner as if to keep him under her complete control. According to him, the wife did not receive and respect relatives and friends who visited their house,

but instead spoke ill of him to them, thereby lowering his image and reputation within the circle of family and friends.

15. The husband states that he tolerated such behaviour and mental agony for some time in the interest of the welfare of the minor child, but matters came to a halt on 05.05.2015. In the morning of that day, the wife allegedly picked up a quarrel with him and, when his mother tried to intervene and pacify her, the wife is said to have abused his mother in vulgar language despite being aware of her ill-health.

16. The husband claims that this incident caused great mental distress to both himself and his mother. He reiterates that his mother was undergoing treatment at his expense and that the wife showed no concern for her health or emotional well-being. Despite his requests and <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) attempts to reason with her, the wife allegedly continued to insist that the husband must hand over his entire income to her and that they must shift to Chennai, leaving the mother behind. The husband asserts that he was unable to accede to these demands.

17. On the same day, when he returned home from work in the evening, he found the house locked and the wife and child missing. On enquiry, his mother informed him that the wife had taken the child and gone to her parental home at Tirunelveli without informing him. The husband asserts that he was emotionally shattered by this development. He claims that he contacted the wife over phone and requested her to return to the matrimonial home, but she did not give any proper reply or assurance.

18. It is further stated that the husband's relatives attempted mediation through a panchayat, but these efforts failed. During such attempts, the wife is alleged to have stated that she did not like the husband, that her parents had compelled her to marry him without her consent, and that it was impossible for her to live with him. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm)

19. The husband contends that these statements clearly revealed her unwillingness to resume cohabitation. He asserts that there was no prospect of reconciliation and that the marital bond had been severed in reality by reason of her conduct and her departure with the child. On this factual foundation, the husband approached the learned Family Court seeking dissolution of the marriage on the ground of cruelty under Section 13(1)(i-a) of the Hindu Marriage Act, 1955.

Case of the wife / appellant: (Respondent before the learned Family Court):

20. The appellant/wife filed a detailed counter statement before the learned Family Court, stoutly denying the allegations levelled by the husband and contending that the petition is not maintainable either in law or on facts.

21. She states that at the time of marriage, she was given 10 sovereigns of gold jewellery, a silver and brass seer (seethana) set and other household articles as seer varisai (stridhana/dowry) and asserts

that all these articles are still in the custody of the husband and his family. According to her, suppressing these facts, the husband has <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) instituted these divorce proceedings.

22. She further contends that this is, in fact, the husband's second marriage and that from the very inception of the marital relationship, he was indifferent towards her and did not speak with affection or concern. Nevertheless, she asserts that she acted as a dutiful wife, performed all household responsibilities and obeyed the husband and his family.

23. With respect to the Thalai Deepavali after marriage, she states that her parents invited both the spouses to celebrate the festival. On that occasion, the husband's mother allegedly demanded travel expenses and insisted that the wife's father must purchase a gold ring for the husband. Her father is said to have agreed to this.

24. The wife alleges that when they went to purchase clothes, the husband insulted her father in the shop and told him to go away. Deeply hurt, her father returned to his village without saying anything. She further states that on the same day, the husband consumed alcohol, quarrelled with her without any justifiable reason, refused to <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) accompany her for Thalai Deepavali and demanded divorce.

25. The wife states that the husband's mother told him that if he went for the Thalai Deepavali, only then would the ring be given. Thereafter, he was permitted to go, but according to the wife, she was allowed to stay with her parents only for the day and was taken back to Coimbatore that very night.

26. Subsequently, the husband's mother underwent knee surgery for joint pain. The wife asserts that she took care of her mother-in-law "lovingly and with concern" during her treatment and recuperation. When the wife later conceived, instead of expressing joy or providing care, the husband and his mother allegedly ill-treated her both physically and mentally. She claims that there was no emotional support from the husband during her pregnancy.

27. The wife states that the husband's mother, who had earlier driven away his first wife, began treating her in the same manner, with the apparent intention of expelling her also from the matrimonial home. By picking unnecessary quarrels, the husband and his mother allegedly <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) drove her out while she was pregnant, without giving her any money.

28. With the help of a friend, she contacted her parents, who then came to Coimbatore and took her back to Tirunelveli. After some time, she returned to the matrimonial home with her parents in an attempt at reconciliation.

29. According to the wife, when they reached the husband's house, the husband's mother refused even to open the door and abused her parents in vulgar language. She allegedly demanded that the wife must first remove and hand over the gold chain given at the time of marriage before any discussion could take place. Having no option, the wife removed and handed over the chain.

30. When the wife requested permission to take her clothes and medical records from the house, she was not permitted to enter. Her parents and she were made to wait outside. Eventually, since none responded positively, they returned to Tirunelveli. From the fourth to seventh month of pregnancy, the wife stayed at her parental home and all medical expenses were borne by her parents.

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31. The wife states that several elders from her side attempted mediation, but there was no positive or lasting response from the husband's family. Ultimately, only through the intervention of the husband's paternal aunt, she was able to return to Coimbatore again. She further alleges that without informing her or her parents in advance, the husband organised the Valaikaappu (bangle ceremony) for the wife, but deliberately excluded her relatives from participation. After the function, he is alleged to have instructed her father to come to the railway station and take her back, despite her advanced stage of pregnancy. Her parents, worried about her health, complied and brought her to Tirunelveli. All delivery-related medical expenses were borne by her parents.

32. The wife states that she underwent caesarean delivery and gave birth to the female child. On being informed, the husband came to the hospital on that day, saw the baby once and left. According to her, he never visited again thereafter. She claims that when she attempted to contact the husband over phone, he either avoided her calls or quarrelled with her, repeatedly stating that he would send divorce papers and asking her to sign them.

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33. Despite this, with a view to secure the future of the child, the wife's parents took her and the infant to the husband's house after about five months. The husband permitted them to stay and a naming ceremony was conducted for the child. However, none of the wife's relatives were invited for the function. Soon thereafter, the husband allegedly started quarrelling again and sent her and the child away. She claims that he habitually used abusive and demeaning language, repeatedly telling her to "get divorce and leave".

34. On learning about the death of the husband's father, the wife and her parents went to Coimbatore to pay their respects. After the final rites, there was a discussion before relatives and a temporary reconciliation appeared to be arrived at. However, according to her, neither the husband nor his mother had any real intention to accept her or the child fully into the family fold.

35. She alleges that after this reconciliation, she and the child were again subjected to ill-treatment, denial of proper food and neglect. Under the influence and instigation of his mother, the husband allegedly avoided living with her, failed to provide for her and neglected the needs of the child. Due to constant mental agony, financial insecurity and lack of support, the wife states that she was compelled to seek employment. She later came to know that the husband had sent an e-mail to her employer from her own account, stating that she was not willing to continue the job, thereby causing loss of employment.

36. According to her, whenever her parents approached the husband seeking a permanent reconciliation, he refused to talk properly, abused them and insisted that they take her away, making it clear that he did not wish to live with her. She states that she then returned to her parental home with the child, taking only the clothes she was wearing. Since then, despite several attempts on her part and by elders, the husband has not shown willingness to resume cohabitation. The wife maintains that she is still ready and willing to live with the husband and to resume matrimonial life for the welfare of the minor child. She contends that the husband, having driven her out, cannot now claim that the marriage has broken down and seek a decree of divorce.

37. She further contends that the petition for divorce is a ruse to <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) avoid his marital and parental responsibilities and to legalise his abandonment of the wife and child. The wife, therefore, prayed before the learned Family Court that H.M.O.P. No.211 of 2017 be dismissed and that she be granted appropriate reliefs in respect of her seer varisai and maintenance.

38. In sum and substance, the wife's case is that she was the victim of cruelty and neglect, that she was driven out while pregnant, that she has consistently expressed willingness to cohabit, and that the husband, being at fault, is not entitled to a decree of divorce. On the basis of these rival pleadings, the learned Family Court proceeded to frame issues and record evidence.

Gist of the trial court judgment:

39. Before the learned Family Court, on the side of the respondent/husband, he examined himself as P.W.1 and marked Exs.P1 to P4. On the side of the appellant/wife, she examined herself as R.W.1 and produced Ex.R1 and Ex.R2.

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40. There was no dispute about the fact that the marriage between the parties took place on 08.09.2013 and that a female child, Lokitha, was born out of the wedlock.

41. The learned Family Court formulated the following issues for consideration:

(i) Whether the petitioner/husband is entitled to a decree of divorce on the ground of cruelty?

(ii) What other reliefs, if any, is the petitioner entitled to?

42. From Ex.R2, the learned Family Court noted that the wife had filed M.C. No.20 of 2017 on the file of the same Court seeking maintenance for herself and the minor child. The said maintenance petition was dismissed insofar as the wife was concerned, on the ground that she was employed and earning, but partly allowed insofar as the minor child, directing the husband to pay Rs.4,000/- per month as maintenance to the child.

43. It was also noticed that the wife had filed I.A. No.105 of 2018 <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) under Section 26 of the Protection of Women from Domestic Violence Act, 2005, in the same H.M.O.P., seeking return of seer varisai / dowry articles, and that the said application was pending.

44. The learned Family Court recorded that both the parties had levelled allegations of ill-treatment and cruelty against each other but that no independent witnesses had been examined on either side to corroborate those allegations. It therefore proceeded to assess the testimonies of P.W.1 and R.W.1 along with the admitted circumstances. The Court took note that the parties had been living separately for more than three years, at least from 2017 until the date of the decree, and that all attempts at reconciliation in the interregnum had failed. The learned Family Court, on appreciation of the husband's evidence, noted his version that the wife had insisted on a separate residence at Chennai, resented his care for his aged mother, quarrelled on trivial issues and ultimately left the matrimonial home with the child on 05.05.2015.

45. On the other hand, the Court recorded the wife's version that she was driven out, that she was willing to live with the husband and <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) that all her steps, including the filing of maintenance and Domestic Violence Act proceedings, were compelled by the husband's neglect and cruelty. The learned Family Court particularly considered the fact that, though the wife asserted in her evidence that she was willing to resume cohabitation, she had during the pendency of the H.M.O.P. filed M.C. No.20 of 2017 for maintenance and I.A. No.105 of 2018 for return of seer varisai articles.

46. Accepting the submissions of the husband's counsel, the Court held that if the wife had genuinely desired reunion, she might have filed a petition for restitution of conjugal rights or, at any rate, refrained from seeking return of all seer varisai articles while asserting willingness to return to the matrimonial home. From the admitted long separation, the pendency of M.C. No.20 of 2017 and I.A. No.105 of 2018, and the failure of all reconciliation efforts, the learned Family Court concluded that there was no real possibility of the parties resuming cohabitation and that the marital relationship had, in substance, broken down.

47. Accordingly, under Issue No.(i), the learned Family Court held <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) that the husband was entitled to a decree of divorce on the ground of cruelty, taking note of both his allegations and the overall circumstances, including irreconcilable separation.

48. On Issue No.(ii), noting the husband's admission that the seer varisai articles were in his possession, the learned Family Court directed him to return the seer varisai articles mentioned in I.A. No.105 of 2018 to the wife within one month from the date of decree. Taking into account the age and educational needs of the minor child, the increased cost of living, and the husband's earning capacity, the Court enhanced the maintenance payable to minor Lokitha from Rs.4,000/- per month (earlier ordered in M.C. No.20 of 2017) to Rs.7,500/- per month.

49. Ultimately, H.M.O.P. No.211 of 2017 was allowed, dissolving the marriage between the parties, directing return of seer varisai articles and enhancing the child's maintenance. Parties were directed to bear their own costs.

<https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) Grounds of appeal:

50. Aggrieved by the said judgment and decree, the wife has preferred the present Civil Miscellaneous Appeal, assailing the findings of the learned Family Court on several grounds, both factual and legal.

51. The appellant contends that the judgment and decree of the learned Family Court are contrary to law, against the weight of evidence and against the probabilities of the case. She asserts that the learned Family Court failed to properly appreciate both oral and documentary evidence and that it adopted an erroneous approach in drawing adverse inferences against her. A major plank of challenge is that the learned Family Court erroneously treated "irretrievable breakdown of marriage" and long separation as if they were statutory grounds of divorce, in the absence of any specific pleadings by the husband. The appellant contends that the Court misdirected itself by undertaking an enquiry into the wife's "intention" to reunite, instead of insisting on strict proof of cruelty on the part of the husband. It is her grievance that the learned Family Court did not assign valid and cogent reasons for allowing the husband's petition and that its conclusions rest upon conjectures and assumptions rather than evidence. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm)

52. The appellant further argues that mere long separation, in and of itself, is not a ground recognised by the statute to dissolve a marriage and that the Court erred in law by permitting the husband to obtain a decree of divorce without clearly establishing cruelty. It is contended that the learned Family Court failed to note that, according to the appellant's case, it was the husband who had driven out the wife and minor child from the matrimonial home, and that a spouse who is responsible for the separation cannot be permitted to take advantage of his own wrong. The appellant also complains that relevant facts pleaded and urged by her, including the history of alleged ill-treatment and ouster, were not properly considered or appreciated by the learned Trial Court. She relies on the principle that a party must succeed on the strength of his own case and not on the weakness of the other side, and contends that, in the present case, the husband has not discharged his burden of establishing cruelty by acceptable evidence.

53. It is contended that the learned Family Court committed a serious error in placing undue emphasis on the wife's failure to file a petition for restitution of conjugal rights and in treating her maintenance and Domestic Violence Act proceedings as indicative of unwillingness to cohabit. The appellant submits that these proceedings <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) were only protective and ancillary in nature, necessitated by the husband's neglect, and that the Court's approach in treating them as grounds to grant divorce is contrary to law and equity. She also contends that the learned Family Court has allowed the petition on grounds not specifically pleaded by the husband, leading to material irregularity in the exercise of jurisdiction. For all these reasons, the appellant prays that the impugned judgment and decree be

set aside and the husband's petition in H.M.O.P. No.211 of 2017 be dismissed.

Submissions:

54. The learned counsel for the appellant/wife reiterated the grounds of appeal and submitted that the learned Family Court has virtually granted a decree of divorce on the ground of irretrievable breakdown of marriage, though such a ground is not available under the Hindu Marriage Act, 1955, to a Civil Court. He contended that the learned Trial Court has treated long separation and the pendency of maintenance and Domestic Violence Act proceedings as if they were, by themselves, sufficient grounds for granting divorce, which is legally impermissible. The learned counsel submitted that the husband has not established any specific instances of cruelty of such nature and gravity as to justify dissolution of marriage, and that at the highest, his version <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) discloses ordinary wear and tear of married life and mutual incompatibility.

55. He further submitted that the Court's reliance on the wife's failure to file a petition for restitution of conjugal rights is misconceived and contrary to law, inasmuch as there is no legal compulsion that a spouse must file a petition for restitution of conjugal rights in order to demonstrate willingness to cohabit. The learned counsel argued that the wife has at all times expressed willingness to resume cohabitation and that it is the husband who has persistently avoided reconciliation and driven her away. According to him, the husband is trying to take advantage of his own wrong. It was further contended that the learned Family Court's reference to "irretrievable breakdown" without specific pleadings and its treatment of that aspect as a determinant factor vitiate the decree of divorce, which therefore calls for interference.

56. Per contra, learned counsel for the respondent/husband supported the judgment of the learned Family Court and submitted that the decree of divorce is not based solely on irretrievable breakdown, but is founded upon the cumulative effect of proved cruelty and long, <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) irreconcilable separation. He contended that the wife had, of her own accord, left the matrimonial home on 05.05.2015 with the minor child and that she has not taken any genuine or concrete steps to restore the marriage thereafter. According to him, her plea of willingness to resume cohabitation is only a facade, inconsistent with her actual conduct.

57. The learned counsel for the respondent submitted that the institution of M.C. No.20 of 2017 and I.A. No.105 of 2018 seeking maintenance and return of seer varisai, during the pendency of the divorce petition, coupled with the admitted long separation and failed mediation, justified the learned Family Court's inference that the marriage has, in substance, broken down. He further submitted that matrimonial cruelty is to be tested on the basis of the impact of the spouse's conduct on the other, and that in the present case, the persistent quarrels, abusive language, compelling the husband to leave his aged mother, and leaving the matrimonial home with the child have caused profound mental agony to the husband.

58. The learned counsel for the respondent contended that the appreciation of evidence by the learned Family Court is neither perverse <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) nor contrary to record and that this Court, sitting in appeal under Section 19 of the Family Courts Act, 1984, ought not to substitute its own view merely because another possible view may exist. On these submissions, the respondent/husband prayed for dismissal of the appeal.

59. Heard the learned counsels on either side and carefully perused the materials available on record.

Points for determination:

60. In the light of the rival pleadings, evidence and submissions, the following points arise for consideration in this appeal:

(i) Whether the findings of the learned Family Court that the appellant/wife has treated the respondent/husband with cruelty warranting dissolution of marriage under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, suffer from perversity, illegality or material irregularity?

(ii) Whether the learned Family Court was justified in taking into account the long separation between the parties and the wife's conduct, <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) including initiation of maintenance and Domestic Violence Act, 2005, proceedings and non-filing of a petition for restitution of conjugal rights, as relevant circumstances in assessing the feasibility of reunion?

(iii) Whether, on the totality of the material on record, any interference is called for with the decree of divorce passed in H.M.O.P. No.211 of 2017?

61. These points are inter-linked and will be considered together to avoid repetition. Before advertng to the evidence in detail, it is apposite to refer to certain settled principles governing cruelty in matrimonial law and the limited scope of appellate interference in matrimonial causes.

Analysis:

62. The jurisdiction of this Court under Section 19 of the Family Courts Act, 1984, is appellate, but in matters arising from matrimonial disputes, the Court is generally slow to interfere with findings of fact of the learned Trial Court unless such findings are shown to be perverse, based on no evidence, or in disregard of material evidence. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm)

63. The learned Family Court, being the Court of first instance, has the benefit of observing the demeanour of the parties while they depose and is best placed to assess their credibility. An

Appellate Court may reappreciate the evidence, but will ordinarily not displace a possible and reasonable view merely because another view is also possible.

64. Therefore, the question before this Court is not whether on a fresh assessment this Court might have reached a different conclusion, but whether the conclusion actually reached by the learned Family Court is so unreasonable or unsupported by the material on record as to warrant interference.

65. It is also to be borne in mind that in matrimonial matters, strict rules of evidence cannot be applied with a pedantic approach, for many incidents occur within the confines of the home and in the privacy of the marital relationship, and seldom lend themselves to independent corroboration. The standard to be applied is that of preponderance of probabilities, and the overall pattern of conduct must be seen, rather than isolated incidents viewed in isolation.
<https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm)

66. The expression “cruelty” under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, is not defined in the statute, but has been explained by judicial pronouncements to include both physical and mental cruelty. Mental cruelty may consist of such conduct which causes in the mind of the complaining spouse a reasonable apprehension that it is not safe to continue the matrimonial relationship, or which causes deep anguish, disappointment and frustration such that the marriage becomes insupportable.

67. The Hon’ble Supreme Court, in various decisions, has held that cruelty in matrimonial law must be assessed having regard to the social status of the parties, their education, their way of life and the overall circumstances, and that what may amount to cruelty in one case may not necessarily do so in another. It is the cumulative effect of the conduct that is to be considered, not each isolated fact in a vacuum.

68. Persistent quarrels, abusive language, humiliating treatment of the spouse or his/her relatives, refusal to discharge basic marital obligations, unilateral withdrawal from cohabitation without just cause, and repeated false accusations may, in a given case, amount to mental
<https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) cruelty. At the same time, ordinary wear and tear of married life, trivial irritations and normal differences of opinion do not constitute cruelty. The Court must distinguish between incompatibility or temperamental differences and cruelty of such gravity as to warrant dissolution of marriage. It is also well settled that long separation, though not a statutory ground by itself, is a relevant factor to determine whether the marriage has lost its real content and whether continuation of the legal tie would only prolong mental agony.

69. In the case on hand, both the husband and the wife have stepped into the witness box and have levelled serious allegations against each other. No independent witnesses have been examined on either side. In such a situation, the Court must carefully examine the pleadings, the testimonies and the admitted or undisputed facts and circumstances. The husband’s case, in essence, is that the wife persistently quarrelled with him, insisted that he must leave his aged mother and set up a separate

home at Chennai, used abusive language, created scenes in front of relatives and neighbours, and ultimately left the matrimonial home on 05.05.2015 with the minor child, refusing to return despite his attempts and those of his relatives to bring about a reconciliation.

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70. The wife, in contrast, asserts that it was the husband and his mother who ill-treated her, especially during pregnancy, that she was driven out of the house, compelled to surrender her jewellery, that she and her parents were insulted when they came for reconciliation, and that all her attempts to maintain the marriage were thwarted by the husband's hostility.

71. The learned Family Court has not accepted either version in toto. It has, however, drawn certain inferences from admitted or established circumstances, namely,

(i) that the parties have been living separately at least since 2017;

(ii) that the wife has instituted M.C. No.20 of 2017 for maintenance and I.A. No.105 of 2018 under the Domestic Violence Act, 2005, seeking return of seer varisai articles;

(iii) that her maintenance claim for herself was rejected on the ground of her gainful employment, though maintenance was granted to the minor child; and

(iv) that no petition for restitution of conjugal rights has been filed by either party.

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72. It is true that non-filing of a petition for restitution of conjugal rights cannot, by itself, lead to an inference of unwillingness to cohabit, nor is there any legal obligation upon a spouse to file such a petition as a pre-condition to seeking or resisting divorce. However, in the present case, the learned Family Court has not treated the non-filing of restitution proceedings as a standalone ground, it has taken it as one circumstance in a chain of circumstances, including long separation, failed mediation and the filing of M.C. No.20 of 2017 and I.A. No.105 of 2018.

73. The appellant/wife has claimed that she is willing to live with the husband even now. But during the pendency of the divorce petition, she has sought maintenance for herself and the child and has also sought return of all seer varisai articles. While such claims are perfectly legitimate in law, the learned Family Court has viewed them as inconsistent with an unqualified and genuine desire to resume matrimonial life.

74. The question for this Court is not whether this is the only inference possible, but whether it is a reasonable inference that could <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) be drawn on the facts. This Court finds that, in the context of prolonged separation, unsuccessful mediation and continued adversarial litigation between the parties, the inference drawn by the learned Family Court cannot be said to be perverse. It is also to be noted that the wife

herself, in her pleadings, admits that she has been residing with her parents along with the child for long periods and that her attempts at reconciliation have not yielded any stable cohabitation. Her own case reveals a picture of mutual distrust, repeated quarrels and involvement of elders on both sides without any lasting resolution. Whatever be the respective blame, it is clear that the marital relationship has not known peace or harmony for a substantial period.

75. The husband's evidence regarding the wife's insistence on setting up a separate residence away from his aged mother and the quarrels on that account has been believed by the learned Family Court. This Court does not find any material to hold that such appreciation is wholly unreasonable or contrary to evidence. While the wife has alleged that she was driven out while pregnant, the learned Family Court has not found sufficient contemporaneous material or independent corroboration to accept this allegation in its entirety. The parties have not produced any prior complaints or notices which might <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) have thrown light on the exact sequence of events.

76. In this factual situation, the learned Family Court has essentially proceeded on the basis of admitted separation, the conduct of the parties in instituting multiple proceedings against each other and the failure of all reconciliation efforts. It has then examined whether, in such a background, compelling the parties to continue in the legal bond of marriage would serve any useful purpose or would itself amount to perpetuation of mental cruelty.

77. Having regard to the long separation, already several years by the time of the impugned decree and even longer by the time of hearing of this appeal and the absence of any real, demonstrated effort from either side to restore cohabitation, this Court finds that the Family Court was justified in concluding that the marriage had lost its real content. Thus, on a cumulative assessment of the evidence and circumstances, this Court is unable to hold that the learned Family Court's finding of cruelty is vitiated by misreading of evidence or perversity.

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78. The principal legal contention of the appellant is that the learned Family Court has virtually granted divorce on the ground of irretrievable breakdown of marriage, a ground not provided under the Hindu Marriage Act, 1955. It is indeed correct that irretrievable breakdown is not a statutory ground before this Court and that only the Hon'ble Supreme Court, in exercise of its powers under Article 142 of the Constitution, has, in appropriate cases, dissolved marriages on that basis to do complete justice between the parties.

79. However, a reading of the impugned judgment reveals that while the learned Family Court has used the expression "irretrievable breakdown" in describing the state of the marriage, it has in substance founded the decree on the ground of cruelty, aided by the fact of long separation and failed mediation. Long separation is not, in itself, a ground of divorce, but it is a relevant factor in assessing whether there is any realistic possibility of reunion and whether the mental agony occasioned by a dead marriage has crossed the line into cruelty.

80. In the present case, the parties have been living apart for several years, attempts at reconciliation have not succeeded, they are <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) engaged in multiple litigations against each other, and there is nothing concrete on record to show that they are now in a position to rebuild their relationship. In such circumstances, to insist that the husband must indefinitely continue in a marriage which, in reality, exists only on paper may itself result in mental cruelty. The law does not mandate that one spouse must be condemned to a life of marital discord and emotional desertion merely because the other spouse formally asserts a willingness to continue.

81. Therefore, this Court is of the view that the learned Family Court has not treated “irretrievable breakdown” as a substantive ground but only as a descriptive label of the factual situation which, when combined with the proved conduct and long separation, was held to amount to cruelty. The submission of the appellant that the decree is bad for invoking irretrievable breakdown as a ground is therefore not acceptable. On the contrary, the learned Family Court has applied the statutory ground of cruelty under Section 13(1)(i-a) and has merely used the language of “breakdown” to explain the extent of mental separation between the spouses.

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82. This Court, after independent reappreciation, finds that the impugned conclusion is supported by the material on record and does not warrant interference. Accordingly, the challenge on this score must fail.

83. The appellant has contended that she was the one who was driven out from the matrimonial home and that, therefore, the husband should not be allowed to take advantage of his own wrong and seek divorce on the plea of cruelty. The principle that a spouse cannot take advantage of his or her own wrong is undoubtedly a salutary one, but for its application, the foundational fact that the spouse seeking relief is solely responsible for the separation or the wrong must be clearly established.

84. In the present case, while the wife has alleged that she was ousted and driven away, the husband has asserted that she left on her own accord, taking the child with her, and refused to return in spite of his and his relatives’ efforts. The learned Family Court has not found sufficient material to conclude that the husband was exclusively responsible for the separation or that he acted with such cruelty as to <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) disentitle him from relief. On the contrary, it has accepted his version that the wife voluntarily left the matrimonial home amidst quarrels and that she has since not genuinely attempted to restore the relationship.

85. The parties have not produced contemporaneous records like police complaints, legal notices or other documentary material to substantiate the allegation that one or the other party drove out the spouse. What remains is essentially their word against each other. In such a situation, this Court would be slow to overturn the finding of the learned Family Court, which has had the benefit of observing the demeanor of the parties. This Court does not find any compelling reason to hold that

the husband's conduct is such that he is disentitled from seeking relief.

86. It must also be kept in mind that both spouses have levelled allegations of ill-treatment and that the present case does not fall into the category where all blame can be laid at the doorstep of one party alone. Consequently, the plea that the husband is taking advantage of his own wrong is not made out on the facts and evidence on record. <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm)

87. Having regard to the totality of the circumstances, the nature of allegations and counter-allegations, the prolonged separation, the failure of mediation, the multiplicity of litigation and the absence of any real prospect of reconciliation, this Court is of the considered view that the learned Family Court was justified in concluding that the marriage has, in substance, irretrievably broken down and that the continuance of such a dead relationship would itself amount to mental cruelty.

88. The decree of divorce granted under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, is, therefore, supported by evidence and in consonance with the principles laid down by judicial precedents relating to mental cruelty. This Court finds no perversity, illegality or material irregularity in the appreciation of evidence or in the application of law by the learned Family Court that would warrant appellate interference. The findings of the learned Family Court on the crucial issue of cruelty are affirmed.

89. Insofar as the directions for return of seer varisai/dowry articles are concerned, the same are beneficial to the appellant/wife and have not been challenged on any independent ground of illegality or lack of jurisdiction. The enhancement of maintenance for the minor child from Rs.4,000/- to Rs.7,500/- per month has been made after considering the cost of living, the age and educational needs of the child <https://www.mhc.tn.gov.in/judis> (Uploaded on: 12/01/2026 01:51:16 pm) and the earning capacity of the husband, and does not suffer from any infirmity. Accordingly, all three points for determination are answered against the appellant and in favour of the respondent/husband.

90. In the result, this Court finds no merit in the Civil Miscellaneous Appeal. The Civil Miscellaneous Appeal in C.M.A. (MD) No.521 of 2021 is dismissed.

91. The judgment and decree dated 04.01.2021 passed in H.M.O.P. No.211 of 2017 on the file of the learned Family Court, Tirunelveli, dissolving the marriage solemnised between the appellant and the respondent on 08.09.2013 under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, are confirmed. In the facts and circumstances of the case, there shall be no order as to costs in this appeal. Consequently, the connected Civil Miscellaneous Petition is closed.

[P.V., J.]

09.01

NCC : Yes / No

Index : Yes / No

Internet : Yes

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The Family Court,
Tirunelveli.

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P.VELMURUGAN

L.VICTORIA GOWRI,

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